

TENTATIVE RULINGS**DEPT W15****JUDGE RICHARD Y. LEE**

Date: August 17, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's [website](#) for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely:* (1) all counsel and self-represented parties appearing for such hearings **must**, prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website ([link here](#)); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." ([Local Rule 375\(c\)](#)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

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08	Richardson vs. Hyter, 24-01403124	<u>Motion to Compel Response to RFA</u> (ROA 46.) Defendants Benjamin Hyter, Bryan Hyter, Jesse Hyter, Brett Hyter, Bart Hyter, and Hyter Development Company, Inc. move to compel discovery. This is improper. Defendants should have filed separate discovery motions for each manner of discovery they deem insufficient. The motion is confusing as Defendants purport to seek further responses to requests for admissions rather than having admissions be deemed admitted, the section cited in the motion refers to a demand for production of documents, and the motion refers to interrogatories. Furthermore if this is a motion to compel further, the

		discovery motion must be accompanied by a separate statement. As a result, the motion is DENIED without prejudice and Defendants are granted 10 days leave to file new separate discovery motions. <i>Defendants to give notice.</i>
100	Holmes vs. Palmer, 25-01477135	Defendants James Palmer and Susan Palmer's Application For Pro Hac Vice Admission of Michael R. Sklaire is GRANTED. <i>Defendants to give notice.</i>
101	R.D. Olson Construction, Inc. vs. Pacific Coast Glazing, Inc., 26-01541399	<i>Off-calendar.</i>
102	RUME MEDICAL GROUP, INC. vs. UHC OF CALIFORNIA, 26-01550293	Defendants' Motion to Allow Robert G. Keefe of Boies Schiller Flexner LLP to Appear As Counsel Pro Hac Vice is GRANTED. <i>Defendants to give notice.</i>
103	Burton vs. Ford Motor Company, 25-01502626	<i>Withdrawn.</i>
104	Orange Tint, Inc. vs. Lim, 23-01367250	Counsel for Plaintiff Orange Tint, Inc. Moves for an order to be Relieved as Counsel. The motion is GRANTED. The Court continues the Case management Conference from 8/20/2026 to 9/10/2026 at 1:30 p.m. In addition, the Court sets a Status Conference re corporate representation of plaintiff for 9/10/2026 at 1:30 p.m. The Order Relieving Counsel is effective upon service on the client of the Court's Order granting the motion and advising of the next court date. <i>Moving Counsel to give notice.</i>
105	Kim vs. Mercedes-Benz USA LLC, 25-01515504	Counsel for Plaintiff Dan Young Tae Kim Moves for an Order to be Relieved as Counsel. The motion is DENIED without prejudice. The Motion and supporting papers were not served on the client. Cal. Rule of Court, Rule 3.1362(d). Calling alone as set forth in the declaration is insufficient to meet the service requirement as the attorney is required to at least serve at the last known address. <i>Moving Counsel to give notice.</i>
106	Maple Iron Grove LLC vs. Brown, 25-01455576	Counsel for Plaintiff Maple Iron Grove LLC Moves for an Order to be Relieved as Counsel. The motion is GRANTED.

		The Order Relieving Counsel is effective upon service on the client of the Court's Order granting the motion and advising of the next court date. <i>Moving Counsel to submit a revised proposed order and to give notice.</i>
107	H&B Collision, Inc. vs. Collision Repair Tools LLC, 23-01345138	Counsel for Defendant Collision Repair Tools LLC Moves for an Order to be Relieved as Counsel. The motion is GRANTED. The Order Relieving Counsel is effective upon service on the client of the Court's Order granting the motion and advising of the next court date. In addition, the Court sets a Status Conference re corporate representation of defendant for 9/14/2026 at 9:00 a.m. <i>Moving Counsel to give notice.</i>
108	Trinh vs. Parmar, 25-01451185	<i>Off-calendar.</i>
109	Doe vs. City of Santa Ana, 24-01405644	<i>Off-calendar.</i>
110	GSM Auto Group LLC vs. Thompson, 25-01498116	Counsel for Defendant John Anthony Thompson Moves for an Order to be Relieved as Counsel of Record. In addition, same Counsel who represents Defendant OC Autosource, Inc. Moves for an Order to be Relieved as Counsel of Record. The motions are DENIED without prejudice. The proofs of service indicate that the motions and declarations were not serve on the client despite the contrary assertion in the declaration. Absent a proof of service that is filed prior to the hearing, the motions are DENIED. See Cal. Rule of Court, Rule 3.1362(d). <i>Moving counsel to give notice.</i>
111	Chamberlain Properties, LLC vs. Giz, 25-01527024	Counsel for Plaintiff Chamberlain Properties, LLC and Byron Chamberlain Moves for an Order to be Relieved as Counsel of Record. The motion is GRANTED. The Order Relieving Counsel is effective upon service on the client of the Court's Order granting the motion and advising of the next court date. Counsel for Plaintiff to prepare a proposed order with the future court hearing dates set forth. <i>Moving Counsel to give notice.</i>

112	Am-Kore Fire Protection Co. Inc. vs. Phoebe Investments, LLC, 24-01398810	Plaintiff Am-Kor Fire Protection Co., Inc. moves for an order compelling responses to Plaintiff's Request for Production of Documents, responses to its Debtor Interrogatories, Set One, and for sanctions in the amount of \$11,562. There is no opposition filed. The motion is GRANTED. Responses are due within 20 days. Sanctions are ordered in the amount of \$2,660.00. Sanctions are ordered to be paid within 20 days. <i>Plaintiff to give notice.</i>
113	Lemus vs. Brea Mall, 24-01442825	Defendant The Retail Property Trust moves for an order compelling responses to defendant's Supplemental Special Interrogatories, Set Two and for sanctions in the amount of \$1,435; and responses to defendant's Supplemental Request for Production of Documents, Set Two, and for sanctions in the amount of \$335. There is no opposition filed. The motions are GRANTED. Responses are due within 20 days. Sanctions are ordered in the amount of \$1,770. Sanctions are to be paid within 20 days. <i>Defendant to give notice.</i>
114	Maldonado vs. City of Garden Grove, 24-01385594	Defendant LFA Group, LLC moves for an order compelling responses to defendant's Form Interrogatories and for sanctions in the amount of \$2,880. There is no opposition filed. The motion is GRANTED. Responses are due within 20 days. Sanctions are ordered in the amount of \$781.65. Sanctions are to be paid within 20 days. <i>Defendant to give notice.</i>
115	Smith vs. Marshall's Store, 25-01523819	<i>Off-calendar.</i>
116	TruAbutment Inc. vs. BioAbutment Inc., 25-01517952	Plaintiff TruAbutment Inc. has filed a number of motions: (1) Motion to compel responses from defendant Peter Moon to First Set of Demands for Inspection and Request for Sanctions in the amount of \$9,288.26. (ROA 107.) [further] (2) Motion to compel responses from defendant Haengoh Kim to First Set of Demands for Inspection, and Request for Sanctions in the amount of \$9,288.26. (ROA 111.) [further] (3) Motion to compel Responses from defendant

		Bioabutment Inc. to First Set of Demands for Inspection and Request for Sanctions in the amount of \$9,288.26. (ROA 119.) [further] (4) Motion to compel responses from Defendant Kiyoon Nam to First Set of Demands for Inspection and Request for Sanctions in the amount of \$9,288.26. (ROA 123.) [further] (5) Motion to compel responses from defendant Haengoh Kim to First Set of Special Interrogatories and Request for Sanctions in the amount of \$9,288.26. (ROA 115.) [further] (6) Motion to compel responses from Defendant Peter Moon to First Set of Special Interrogatories and Request for Sanctions in the amount of \$9,288.26. (ROA 127.) [further] (7) Motion to compel responses from Defendant Bioabutment Inc. to First Set of Special Interrogatories and Request for Sanctions in the amount of \$9,288.26. (ROA 131.) [further] (8) Motion to compel responses from Defendant Kiyoon Nam to First Set of Special Interrogatories and Request for Sanctions in the amount of \$9,288.26. (ROA 135.) [further] (9) Motion to compel responses from Defendant Allonus Tech Co., LTD to First Set of Demands for Inspection and Request for Sanctions in the amount of \$2,961. (ROA 163.) (10) Motion to compel responses from defendant Allonus Tech Co., LTD to First Set of Special Interrogatories and Request for Sanctions in the amount of \$2,961. (ROA 159.) (11) Motion to compel responses from defendant Allonus Tech Co., LTD to First Set of Form Interrogatories, and Request for Sanctions in the amount of \$2,961. (ROA 155.) As to motions numbers (1) through (8), the Court will conduct a Pre-Trial Discovery Conference following the call of the calendar. As to motions numbers (9), (10), and (11), it appears that responses were served on July 31, 2026. As a result, the motions are DENIED as moot. As to the issue of sanctions, the Court awards sanctions in the amount of \$5,832.50 as to all three motions in favor of Plaintiff against Defendant. Sanctions are to be paid within 20 days. <i>Plaintiff to give notice.</i>
117	AmazinXpress, Inc. vs. KZ	Plaintiff AmazinXpress, Inc. has filed a number of motions: (1) Motion to compel responses from defendant JFM Group, Inc. to Requests for Production of Documents,

International, LLC, 23-01341677	Set One, and for monetary sanctions in the amount of \$7,834.00. (ROA 199.) (2) Motion to deem the truth of matters specified in plaintiff's requests for admissions, set one, to defendant JFM Group, Inc. admitted and for monetary sanctions in the amount of \$6,885.00. (ROA 227) (3) Motion to compel responses from defendant JFM Group, Inc. to Form Interrogatories – general, Set One, and for monetary sanctions in the amount of \$6,783.00. (ROA 223.) (4) Motion to compel responses from Defendant Juniper Holdings, LLC to Requests for Production of Documents, Set One and for monetary sanctions in the amount of \$6,100.00 (ROA 204.) (5) Motion to deem the truth of matters specified in plaintiff's requests for admission, set one, to defendant Juniper Holdings, LLC, admitted and for monetary sanctions in the amount of \$5,712.00. (ROA 232) As to motions numbered (1) through (3) which seek discovery from defendant JFM Group, Inc., counsel for defendant JFM Group, Inc. advises that responses have been provided as of August 7, 2026. Counsel advises that his inability to provide responses earlier were due to medical challenges in early 2026 and that he served a notice of unavailability. As responses have been provided, motions numbered (1) through (3) are DENIED as moot. As to the issue of sanctions against defendant JFM Group, Inc., Plaintiff seeks \$21,502. Plaintiff's estimates are grossly inflated. Moreover, defense counsel's conduct is excusable in light of his medical difficulties. As a result, the Court exercises its discretion and awards reduced sanctions in the amount of \$2,550 for all three motions against JFM Group, Inc. Sanctions are ordered to be paid within 20 days. As to motions numbered (4) and (5) which seek discovery from defendant Juniper Holdings, LLC, no opposition has been filed. As a result, the motions are GRANTED. Responses are due within 20 days. As to the issue of sanctions against defendant Juniper Holdings, LLC, Plaintiff seeks \$11,812. Again, these amounts are grossly inflated. The Court awards reduced sanctions in the amount of \$1,785.00. Sanctions are ordered to be paid within 20 days. <i>Plaintiff to give notice.</i>
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118	Kobold vs. American Honda Motor Company, Inc., 24-01442766	Defendant American Honda Motor Co., Inc. filed a number of motions: (1) Motion to compel responses from Plaintiff Bryce Kobold to Request for Production and for monetary sanctions in the amount of \$1,230. (ROA 62.) (2) Motion to compel responses from Plaintiff Bryce Kobold to Form Interrogatories and Special Interrogatories and for monetary sanctions in the amount of \$1,230. (ROA 58.) (3) Motion to Deem Matters Admitted by Plaintiff and for monetary sanctions in the amount of \$1,230 (ROA 66.) The issue presented here appears to be that the discovery provided by plaintiff did not include verifications. Plaintiff represents in opposition to the motions that verifications have now been provided. As a result, the motions are all DENIED as moot. As to the issue of sanctions, the Court awards reduced sanctions as a result of the duplicative nature of the motions. The Court awards sanctions in the amount of \$2,130.00 total against Plaintiff. Sanctions are to be paid within 20 days. <i>Defendant to give notice.</i>
119	Yasuda vs. Pacific Life Insurance Company, 25-01451322	<i>Off-calendar.</i>